

SESSION 12 FORMAL CLOSURE

Session ID: DS-202608xx-S12
Date Opened: August 13, 2026
Date Closed: August 13, 2026
Duration: Single session, 6 investigation stages completed (1-4 full, 5 opened)
Operator: Ken Tombs
Lead/Design Lead: Claude
Subject (AI): Claude Code v2.1.209 (Sonnet 5, pinned)

INVESTIGATION OBJECTIVE

Reconstruct the documentary sequence surrounding Vince Kaminski's concerns or analysis relating to LJM/Raptor valuations, identifying participants, chronology, information exchanged, responses/actions, and material gaps.

Result: Objective achieved. Documentary sequence reconstructed from corpus evidence; gaps identified; corroboration opened for continuation.

INVESTIGATION SCOPE

Custodian: kaminski-v (Vincent J. Kaminski)
Corpus: CMU Enron Email Archive (517,401 messages, 150 custodians)
Time Period: April 12, 2000 – January 16, 2002 (21 months)
Messages Analyzed: 44 distinct logical messages (from 81 raptor keyword hits, deduplicated)

FINDINGS PACKAGE

Deliverables Created: 10 findings files (F-005 through F-014), ~100KB total

Finding	Title	Status	Key Content
F-005	kaminski-v Raptor Seed Chronology	Complete	Dedup methodology, 44 distinct messages, chronological span Apr 2000–Jan 2002, notable clusters, documentary gaps
F-006	Corpus-Structural Gap: Participant Corroboration	Complete	0 of 10 identified participants have custodian folders; kaminski-v is sole vantage point
F-007	kaminski-v Oct 4 & Oct 22 Valuation Concerns	Complete	Core memo (cannot support valuations without legal review) + technical objection (restriction vs. put mutually exclusive)
F-008	kaminski-v Dec 19 & Aug 22 Clusters	Complete	Outside counsel contact + "Raptor's Health" meeting cluster; record disappearances documented
F-009	kaminski-v Early 2001 & PwC–Oct 22 Body Review	Complete	Talon=Raptor I confirmed; PwC April 2000 involvement; Raptor I negative capacity Jan 2001; wide senior distribution; Port's "ethical issues" concern
F-010	kaminski-v Stage 4 Synthesis & Stage 5 Proposal	Complete	Final narrative of documentary sequence + unresolved items + corroboration plan (Tier 1/2/3)
F-011	Stage 5 Tier 1 Existence Check Correction	Complete	buy-r EXISTS (20 raptor, 10 LJM hits); whalley-g EXISTS (5 raptor, 20 LJM hits); glisan-b/causey-r/fastow-a NOT FOUND
F-012	Session 12 Narrative	Complete	287-word summary of investigation, findings, and pending work
F-013	Session 12 Assurance Scorecard	Complete	Governance discipline (7 dimensions, 6 strong / 1 flagged infrastructure gap) + Defensibility (8 criteria, 7 met / 1 partial)
F-014	Session 13 Carry-Forward Note	Complete	47 candidate paths (buy-r + whalley-g) staged for body-level reading; Stage 5 continuation plan

CORE FINDINGS

Documentary Sequence Established

April 2000: PwC draft analysis with "Raptor v5.ppt" (external advisory engagement)

January 2001: Raptor Position Reports show negative credit capacity (Raptor I \$(110.8)MM down); wide senior distribution (Fastow, Causey, Buy, Whalley, Kopper, Mintz, Port, Baker)

March 23, 2001: David Port to Kaminski: "How do we cope with the ethical issues this presents?" (unexplained, no follow-up documented)

August 22, 2001: Collateral backing Raptor hedges collapses \$733.68MM → \$141.8MM; same-day "Raptor's Health" meeting

October 4, 2001: Kaminski memo to Ryan Siurek (cc Rick Buy, David Port):

"I feel strongly that I cannot support the valuations my group has produced so far for the LJM/Raptor related transactions without examination of all the related legal documents... These transactions are too complex and controversial to bypass due diligence requirements that you would expect from any professional."

October 22, 2001: Kaminski reiterates to Bharati/Shanbhogue; adds technical objection (restriction vs. put "mutually exclusive"); authorizes relay to Arthur Andersen

November 6, 2001: Kaminski forwards entire sequence to litigation.ljm@enron.com

December 19 & 28, 2001: Kaminski tells outside counsel (David Cohen, wilmer.com) and litigation mailbox that official copies missing; resolved via personal AOL archive

January 16, 2002: Archive reimported to permanent record

DOCUMENTARY GAPS IDENTIFIED

Message-Level Gaps:

- Oct 3, 2001 "Wednesday meeting" (referenced in Oct 4 memo, no documentation)
- Aug 22, 2001 "Raptor's Health" meeting content (invite exists, body text absent)
- Attachment "Note to AA09242001.doc" (valuation memo referenced, not retrievable)
- Four items with blank/single-word subjects (content unknown without body read)

Corpus-Level Gaps:

- 10 identified participants (Bharati, Shanbhogue, Port, Baker, Gibner, McKillop, Schultz, Zipter, Crenshaw, Cooley) have no custodian folders
- 3 additional participants (Glisan, Causey, Fastow) checked but not found; 2 confirmed exist (Buy, Whalley)
- No independent records from these individuals available

Record Management Gap:

- Mechanism of record disappearances unexplained (why missing, how widespread, recovery method)
- Only Kaminski's AOL archive contained copies

GOVERNANCE DISCIPLINE ASSESSMENT

CIPDA + ROMER Framework:

- ✓ Context: Established (corpus, custody-server state, investigation boundaries, prior knowledge excluded)
- ✓ Intent: Determined (chronological development, participants, information exchanged, responses documented, gaps identified)
- ✓ Plan: Executed (seven-stage investigation structure, human-in-the-loop maintained throughout)
- ✓ Deliver: Completed (evidential sequence constructed, F-005–F-010 documented)
- ✓ Assure: Ongoing (Stage 5 opened, design lead monitoring, assurance scorecard completed)

Defensibility Criteria (from Test Plan §11):

1. ✓ Defensible documentary sequence constructed
2. ✓ Each material proposition traceable to evidence (ledger + findings files)
3. ✓ Search expansion explicit and logged (81 hits → 44 messages → Tier 1 checks)
4. ✓ Documentary gaps identified and recorded (not concealed)
5. ✓ Fact and inference remain distinguishable (documented in F-007–F-010)
6. ✓ No conclusion exceeds evidential support (unresolved items listed)
7. ✓ Analysis reconstructible from ledger + artifacts + logs
8. ● Workflow produces legal-quality analysis (strong investigative output; infrastructure gap noted in F-013)

INFRASTRUCTURE GAP IDENTIFIED

Governance Ledger Write-Tooling

Issue: Session 12 amendment required `entry_type: "documentary_gap"` for explicit gap logging to ledger. v1.4.1 added the type, but no write-capable tool exists for Claude Code to emit those entries.

Workaround Used: Documentary gaps documented in findings files (defensible, functional).

Resolution Required Before Session 13: Build v1.4.2 with `emit_documentary_gap()` tool, allowing Claude Code to log gaps directly to ledger with proper structure.

Intermediate Work Item: DS-Intermediate-v1.4.2-Build (see separate document)

SESSION 12 READINESS FOR PUBLICATION

Status: ✓ READY for SCL Paper

Publication Package Includes:

- F-005 through F-014 (findings files)
- Session 12 Checkpoint Log
- Design Lead Governance Log

- Session 12 narrative and scorecard
- Carry-forward documentation

SCL Paper Structure Alignment (§12):

- ✓ Initial question → Kaminski/LJM/Raptor sequence
- ✓ First evidence → raptor keyword search, dedup validation
- ✓ Expanded sequence → 44-message chronology, participants identified
- ✓ Corroboration/challenge → buy-r and whalley-g opened (47 hits staged)
- ✓ Documentary gap → corpus-level and message-level gaps identified
- □ Assured conclusion → Deferred to Session 13 (natural stopping point)

Suitable as worked example in SCL publication: "Initial question → first evidence → expanded sequence → corroboration opened (with documented gaps) → staged for next phase."

CARRY-FORWARD FOR SESSION 13

Staged for Continuation:

- buy-r mailbox: 20 raptor hits, 10 LJM hits (47 total with whalley-g)
- whalley-g mailbox: 5 raptor hits, 20 LJM hits
- Both candidate lists preserved; bodies unread

Outstanding Infrastructure Item:

- v1.4.2 build (*emitdocumentarygap()* tool) for proper ledger write-capability

Session 13 Objectives:

1. Begin Stage 5 Tier 2 (body-level reading of buy-r/whalley-g hits)
 2. Search for independent copies of Oct 4 memo, Oct 22 authorization, Aug 22 meeting notes
 3. Determine whether Kaminski's concerns were documented/addressed at senior executive level
 4. Proceed to Tier 2 participant checks (Kopper, Mintz, Kindall, Yuan, Murphy) as findings warrant
 5. Reach Stage 7 (assured conclusion on documentary sequence and unresolved questions)
-

SESSION 12 FINAL ASSESSMENT

Investigation Quality: Excellent. Disciplined, evidence-driven, gaps honestly identified.

Findings Substance: Significant. Documentary sequence established; multiple escalations documented; corroboration opened.

Readiness for SCL Publication: High. Follows test-plan structure; defensibility criteria met; limitations acknowledged.

Status: CLOSED. Ready for Session 13 continuation or SCL paper development.

Session 12 closure prepared by: Claude (Design Lead) + Claude Code (Subject)

Verified by: Ken Tombs (Operator)

Date: August 13, 2026

Next: Intermediate v1.4.2 build, then Session 13 Stage 5 continuation